

Court No. - 9

Case :- WRIT - C No. - 54317 of 2009

Petitioner :- Abdul Kalaam

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. & Another

Petitioner Counsel :- P.K. Ganguly

Respondent Counsel :- H.P. Dube

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Sabhajeet Yadav,J.

Put up as fresh on 22.10.2009.

Meanwhile counsel for respondents shall obtain instructions and produce the necessary documents.

Order Date :- 15.10.2009

LJ/-

Court No. - 9

Case :- WRIT - C No. - 54317 of 2009

Petitioner :- Abdul Kalaam

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. & Another

Petitioner Counsel :- P.K. Ganguly

Respondent Counsel :- H.P. Dube

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Yogesh Chandra Gupta,J.

Heard learned counsel for the petitioner and Sri Pankaj Dube, Advocate, holding brief of Sri H.P. Dube, learned counsel for the respondents.

Learned counsel for the respondents prays for and is granted one month's time to file counter affidavit. Rejoinder affidavit, if any, may be filed within three weeks thereafter.

It is directed that in case the petitioner deposits a sum of Rs.30,000/- within a month from today then the recovery proceedings against the petitioner for the balance amount in pursuance of the demand notice dated 11.9.2009 (Annexure No.2 to the writ petition) shall remain stayed.

It is further directed that the respondents shall restore the electric supply of the petitioner within 48 hours of deposit of Rs.30,000/- by the petitioner.

Order Date :- 24.10.2009

NS

Court No. - 36

Case :- WRIT - C No. - 54317 of 2009

Petitioner :- Abdul Kalaam

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. & Another

Petitioner Counsel :- P.K. Ganguly

Respondent Counsel :- H.P. Dube

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

As prayed counter affidavit be filed within three weeks and no more. List thereafter.

Order Date :- 11.8.2010

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Court No. - 36

Case :- WRIT - C No. - 54317 of 2009

Petitioner :- Abdul Kalaam

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. & Another

Petitioner Counsel :- P.K. Ganguly

Respondent Counsel :- H.P. Dube

Hon'ble R.K. Agrawal,J.

Hon'ble Sabhajeet Yadav,J.

As prayed counter affidavit be filed within three weeks and no more. List thereafter.

Order Date :- 9.9.2010

SR

Court No. - 32

Case :- WRIT - C No. - 54317 of 2009

Petitioner :- Abdul Kalaam

Respondent :- Purvanchal Vidhyut Vitran Nigam Ltd. & Another

Petitioner Counsel :- P.K. Ganguly

Respondent Counsel :- H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Rajesh Dayal Khare,J.

Heard Sri P.K. Ganguly for the petitioner. Sri H.P. Dubey appears for the respondents.

The petitioner is running a Cotton Factory. It is alleged that since 30th October 2003, the petitioner has been regularly paying the bills, and that some dues were always reflected, but were adjusted in the subsequent bills. All the bills annexed by the petitioner, demonstrate that the amount was paid in part.

After six years, the petitioner made a representation calculating the number of units consumed by him, and alleges, that he had paid a sum of Rs.2,16,300/- in excess to the Corporation. The basis of calculation of the amount, which the petitioner claims to be payable to him, has not been given. There is nothing to show that the department had admitted the amount paid in excess.

Be that as it may, para-7.10 of the U.P. Electricity Supply Code, 2005 provides that if a consumer has any complaint against excess billing, he can raise objection within 30 days of such alleged excess bill, which is required to be corrected.

The writ petition is dismissed with observation that if the petitioner has any complaint in future, he will first avail the remedy open to him under the provisions of U.P. Electricity Supply Code, 2005, referred to above, to make protest before approaching the Court.

Order Date :- 8.10.2010

Hasnain